

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

MARIA MOLINA-JOVEL,

Plaintiff,

-v-

THE CITY OF NEW YORK, New York City Police
Department Officers ("P.O.s") JOHN DOES 1-2, in their
individual capacities,

Defendants.

VERIFIED COMPLAINT

Demand for Trial by Jury

Plaintiff, through her attorneys David B. Rankin and Deema Azizi of Beldock Levine & Hoffman LLP, as and for their complaint, does hereby state and allege:

PRELIMINARY STATEMENT

1. This is a civil rights action brought to vindicate Plaintiff's rights under the Fourth and Fourteenth Amendments of the Constitution of the United States, through the Civil Rights Act of 1871, *as amended*, codified as 42 U.S.C. § 1983, and under the laws of State of New York and common law.

2. Plaintiff's rights were violated when officers of the New York City Police Department ("NYPD") unconstitutionally entered her home and without any legal basis, used excessive and unlawful force, detained, and arrested her, and pursued a malicious prosecution against her. By reason of defendants' actions, including their unreasonable and unlawful seizure of Plaintiff's person, Plaintiff was deprived of her constitutional rights.

VENUE

3. Venue is properly laid in the Supreme Court of the State of New York, County of Queens because at least a substantial part of the events or omissions giving rise to the claim occurred in Queens County. C.P.L.R. § 503 (a).

JURISDICTION

4. Pursuant to New York State General Municipal Law § 50-e, plaintiff filed a Notice of Claim on October 7, 2021 with the New York City Comptroller.

5. Plaintiff has a petition for a late notice of claim pending in New York County, index no. 159226/2021.

6. Plaintiff's claims were not adjusted by the New York City Comptroller's Office within the period of time provided by statute.

JURY DEMAND

7. Plaintiff respectfully demands a trial by jury of all issues in this matter pursuant to C.P.L.R. § 4102.

PARTIES

8. Plaintiff Maria Molina-Jovel was at all times relevant to this action a resident of the County of Queens in the State of New York.

9. Defendant The City of New York ("City") is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. Defendant City assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the NYPD.

10. Defendants NYPD Officers ("P.O.") John Doe 1 and John Doe 2 are or were at all times relevant herein, officers, employees and agents of the NYPD and will collectively be referred to as the "Individual Defendants." Upon information and belief, P.O. John Does 1-2 were officers at the 115th precinct at the time of the incident.

11. The Individual Defendants are being sued in their individual capacities.

12. At all times relevant herein, the Individual Defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees, and officers of NYPD and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the NYPD at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the NYPD and incidental to the lawful pursuit of their duties as officers, employees and agents of the NYPD.

13. The Individual Defendants' acts hereafter complained of were carried out intentionally, recklessly, with malice, and in gross disregard of plaintiff's rights.

14. At all relevant times the Individual Defendants were engaged in a joint venture, assisting each other in performing the various actions described herein and lending their physical presence and support and the authority of their offices to one another.

STATEMENT OF FACTS

1. Plaintiff is a home health aide and the primary caretaker for her elderly father, who suffers from Alzheimer's disease.

2. On December 6, 2019, Ms. Molina-Jovel was at her apartment in Jackson Heights, Queens, and was caring for her father.

3. At approximately 10:30 p.m., two men knocked violently on Ms. Molina-Jovel's door while yelling, "open the door!"

4. At one point, the men identified themselves as New York Police Department ("NYPD") officers and Ms. Molina-Jovel looked through the peephole to confirm.

5. However, Ms. Molina-Jovel did not see any police badge through the peep hole and the men were not in police uniform.

6. Not knowing who the men were, and fearing for her and her elderly father's safety, Ms. Molina-Jovel dialed 911 for assistance. The officers continued to knock and scream loudly.

7. The 911 operator told Ms. Molina-Jovel that she will send an officer to investigate and instructed Ms. Molina-Jovel to wait inside the apartment until that officer arrived.

8. The two men outside, who turned out to be, in fact, NYPD officers, and are sued herein as P.O. John Does 1-2, broke down the door by breaking the doorknobs and entered the apartment.

9. When they entered Ms. Molina-Jovel's apartment, P.O. John Does 1-2 did not introduce themselves or share their names.

10. Frightened, Ms. Molina-Jovel called 911 again but, as she spoke to the operator, P.O. John Doe 1 approached her with anger in his eyes. P.O. John Doe 1 proceeded to grab the phone from Ms. Molina-Jovel's ear and throw it to the floor; it hit the coffee table on the way down and broke.

11. Shortly thereafter, P.O. John Doe 1 jumped on Ms. Molina-Jovel, pinning her down with such force that her chest, shoulder, and leg were bruised.

12. The officer ruthlessly twisted Ms. Molina-Jovel's arms behind her back to arrest her. Despite the fact that Ms. Molina-Jovel was not resisting arrest, P.O. John Doe 2 participated in pinning her down.

13. Ms. Molina-Jovel's elderly father saw what the officers were doing and begged them to stop, but they ignored his pleas.

14. The officers falsely accused Ms. Molina-Jovel of harming her father even though Ms. Molina-Jovel was her father's primary caregiver and would never hurt her father.

15. The handcuffs that were placed on Ms. Molina-Jovel's wrists were so tight that they caused bruising.

16. Ms. Molina-Jovel was transported to the 115th precinct, where she was fingerprinted and photographed.

17. Despite repeated requests, Ms. Molina-Jovel was not permitted to speak to a lawyer.

18. During this time, Ms. Molina-Jovel was sick with a cold and, despite asking for a jacket, was forced to remain in a cold cell in only a sleeveless shirt and slippers.

19. When Ms. Molina-Jovel asked one of the officers not to let others into her home, the officers told her to shut up.

20. Ms. Molina-Jovel's illness worsened, and she was later prescribed antibiotics.

21. Upon information and belief, the Individual Defendants fabricated reports and injuries to support the unconstitutional prosecution of Ms. Molina-Jovel.

22. On or about February 3, 2020, all charges against Ms. Molina-Jovel were dismissed.

23. As a result of the NYPD officers' excessive force, false arrest, and unlawful conduct, Ms. Molina-Jovel's constitutional rights were violated, and she suffered physical, emotional, and economic injury.

**FIRST CLAIM
DEPRIVATION OF RIGHTS
UNDER THE UNITED STATES CONSTITUTION THROUGH 42 U.S.C. § 1983
*(Against the Individual Defendants)***

24. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

25. Defendants, acting under color of law and without lawful justification, intentionally, and/or with a deliberate indifference to or a reckless disregard for the natural and probable consequences of their acts subjected Plaintiff to the foregoing acts and omissions. In doing so, Defendants deprived Plaintiff of her rights, privileges and immunities guaranteed under 42 U.S.C. § 1983 and secured by the Fourth and Fourteenth Amendments to the United States Constitution, including, without limitation, the following constitutional rights: (a) freedom from warrantless entry into Plaintiff's home under *Payton v. New York*, 445 U.S. 573 (1980); (b) freedom from unreasonable seizure of Plaintiff's person; (c) freedom from unlawful search of their person and home; (d) freedom from arrest without probable cause; (e) freedom from false imprisonment; (f) freedom from the use of excessive force against their person; (g) freedom from false allegations and fabrication of evidence; (h) freedom from malicious prosecution by police, that being prosecution without probable cause that is instituted with malice and that ultimately terminated in plaintiff's favor; and (i) failure to intervene to prevent the complained of conduct.

26. As a result of the foregoing, Plaintiff was deprived of liberty, suffered physical pain and emotional distress, humiliation, loss of property, costs and expenses, and were otherwise damaged and injured.

SECOND CLAIM FOR RELIEF
42 U.S.C. § 1983
LIABILITY OF THE CITY OF NEW YORK FOR CONSTITUTIONAL VIOLATIONS
(Against the City of New York)

27. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

28. At all times material to this complaint, defendant City had *de facto* policies, practices, customs and usages which were a direct and proximate cause of the unconstitutional conduct alleged herein.

- a. NYPD officers routinely conduct arrests in private residences without a warrant or verifying an exception to the warrant requirement, and despite a lack of probable cause;
- b. NYPD officers routinely enter homes in the absence of a warrant or exigent circumstances, and in the absence of any corroborating information or investigation, seize and forcibly transport individuals encountered in private residences to hospitals for psychiatric evaluation in violation of their constitutional rights;
- c. Defendant City failed to properly train NYPD officers as to the permissible bounds of the Fourth Amendment, the warrant requirement for entry into a private residence, and the limited exceptions to the warrant requirement;
- d. NYPD officers routinely receive prank calls with false or hearsay allegations from disgruntled individuals seeking to utilize the NYPD as a weapon in personal vendettas, and yet Defendant City does not train NYPD officers as to:
 - i. The necessary steps that must be taken to properly confirm probable cause to support entry, obtain a warrant, or lawfully arrest;
 - ii. The common indicia of such false allegations concerning conditions in private residences;
 - iii. The indicia of emergency and/or exigent circumstances warranting a departure from the warrant requirement;
 - iv. How to conduct an investigation to lawfully support entry into a private residence or further investigation and action therein, including the additional information needed to support entry or seizure of a subject in a private residence without a warrant;
 - v. The permissible bound of force to be utilized when entering a private residence without a warrant and for the limited purpose of investigating an emergency and to conduct a wellness check of the subject individual;
- e. It is also a custom, policy, and/or practice of the City to conduct inadequate screening in the hiring of police officers for their propensity for violence, and to retain those officers despite repeated excessive force incidents and violations of constitutional rights.
- f. Despite a pervasive and well-documented practice of entering private residences and arresting the lawful residents without a warrant or probable cause, Defendant City failed to train, supervise, and discipline its officers in regards to violations of the warrant requirement;

29. That defendant City deliberately disregarded a pervasive custom and practice amounting to institutional policy giving rise to the constitutional violations alleged herein is further supported by a Civilian Complaint Review board report titled “Crossing the Threshold: An Evaluation of Civilian Complaints of Improper Entries and Searches by the NYPD from January 2010 to October 2015.”¹

30. Despite the well documented nature of the unconstitutional policies and practices, defendant City has allowed the same to continue, directly causing the violation of Plaintiff’s rights, in addition to many others.

31. Here, the Individual Defendants unlawfully entered Plaintiff’s apartment, searched, and seized Plaintiff, based on un-corroborated hearsay allegations, conduct arising falling within and arising directly from defendant City’s unconstitutional policies and practices.

32. At all times material to this complaint, defendant City failed to properly train, screen, supervise, or discipline its employees and police officers, including the Individual Defendants, and failed to inform the Individual Defendants’ supervisors of their need to train, screen, supervise or discipline the Individual Defendants.

33. The policies, practices, customs, and usages, and the failure to properly train, screen, supervise, or discipline, were a direct and proximate cause of the unconstitutional conduct alleged herein, causing injury and damage in violation of plaintiff’s constitutional rights as guaranteed under 42 U.S.C. § 1983 and the United States Constitution, including its Fourth and Fourteenth Amendments.

¹ *Crossing the Threshold: An Evaluation of Civilian Complaints of Improper Entries and Searches by the NYPD from January 2010 to October 2015*, CCRB (2015), available at <http://www.nyc.gov/html/ccrb/downloads/pdf/Crossing-the-Threshold-2010-2015.pdf>

34. As a result of the foregoing, Plaintiff was deprived of liberty, suffered emotional distress, humiliation, costs and expenses, and was otherwise damaged and injured.

**THIRD CLAIM FOR RELIEF
ASSAULT AND BATTERY
UNDER THE LAWS OF THE STATE OF NEW YORK
(Against all Defendants)**

35. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

36. By the actions described above, defendants did inflict assault and battery Plaintiff. The acts and conduct of the Individual Defendants were the direct and proximate cause of injury and damage to Plaintiff and violated her statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

37. The conduct of the Individual Defendants alleged herein occurred while they were on duty, and/or in and during the course and scope of their duties and functions as NYPD officers, and/or while they were acting as agents and employees of defendant City, invoking state power and/or authority, and, as a result, defendant City is liable to Plaintiff pursuant to the state common law doctrine of *respondeat superior*.

38. As a result of the foregoing, Plaintiff was deprived of their liberty, suffered specific and serious bodily injury, pain and suffering, psychological and emotional injury, costs and expenses, and was otherwise damaged and injured.

**FOURTH CLAIM FOR RELIEF
FALSE ARREST AND FALSE IMPRISONMENT
UNDER THE LAWS OF THE STATE OF NEW YORK
(Against all Defendants)**

39. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

40. By the actions described above, the Individual Defendants caused to be falsely arrested or falsely arrested Plaintiff, without reasonable or probable cause, illegally and without a warrant, and without any right or authority to do so.

41. The acts and conduct of the Individual Defendants were the direct and proximate cause of injury and damage to Plaintiff and violated her statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

42. The conduct of the Individual Defendants alleged herein occurred while they were on duty, and/or in and during the course and scope of their duties and functions as NYPD officers, and/or while they were acting as agents and employees of defendant City, invoking state power and/or authority, and, as a result, defendant City is liable to Plaintiff pursuant to the state common law doctrine of *respondeat superior*.

43. As a result of the foregoing, Plaintiff was deprived of their liberty, suffered specific and serious bodily injury, pain and suffering, psychological and emotional injury, costs and expenses, and was otherwise damaged and injured.

**FIFTH CLAIM FOR RELIEF
TRESPASS
UNDER THE LAWS OF THE STATE OF NEW YORK
(Against all Defendants)**

44. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

45. The Individual Defendants entered the apartment without any occupants' consent, without a warrant and without exigent circumstances, and unlawfully remained therein, thereby interfering with the Plaintiff's right of possession.

46. The conduct of the Individual Defendants alleged herein occurred while they were on duty, and/or in and during the course and scope of their duties and functions as NYPD officers,

and/or while they were acting as agents and employees of defendant City, invoking state power and/or authority, and, as a result, defendant City is liable to Plaintiff pursuant to the state common law doctrine of *respondeat superior*.

47. The defendants' deprivations of Plaintiff's rights resulted in the injuries and damages set forth above.

**SIXTH CLAIM FOR RELIEF
TRESPASS TO CHATTELS
UNDER THE LAWS OF THE STATE OF NEW YORK
(Against all Defendants)**

48. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

49. The Individual Defendants entered the apartment without any occupants' consent, without a warrant and without exigent circumstances, and unlawfully remained therein.

50. The Individual Defendant's broke Plaintiff's doorknob in order to enter.

51. In addition, P.O. John Doe 1 caused Plaintiff's phone to break.

52. The conduct of the Individual Defendants alleged herein occurred while they were on duty, and/or in and during the course and scope of their duties and functions as NYPD officers, and/or while they were acting as agents and employees of defendant City, and/or invoking state power and/or authority, and, as a result, defendant City is liable to the Plaintiff pursuant to the state common law doctrine of *respondeat superior*.

53. The defendants' deprivations of Plaintiff's rights resulted in the injuries and damages set forth above.

**SEVENTH CLAIM FOR RELIEF
INTENTIONAL and/or NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS
UNDER THE LAWS OF THE STATE OF NEW YORK
(Against all Defendants)**

54. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

55. By the actions described above, defendants engaged in extreme and outrageous conduct, which intentionally and/or negligently caused severe emotional distress to plaintiff.

56. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiff and violated their statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

57. As a result of the foregoing, Plaintiff was deprived of their liberty, suffered specific and serious bodily injury, pain and suffering, psychological and emotional injury, great humiliation, costs and expenses, and was otherwise damaged and injured.

JURY DEMAND

58. Plaintiff demands a trial by jury in this action on each and every one of their damage claims.

WHEREFORE, Plaintiff demands judgment against the defendants individually and jointly and pray for relief as follows:

- a. That she be compensated for violation of their constitutional rights, pain, suffering, mental anguish, and humiliation; and
- b. That she be awarded punitive damages against the Individual Defendants; and
- c. That she be compensated for attorneys' fees and the costs and disbursements of this action; and
- d. For such other further and different relief as to the Court may seem just and proper.

Dated: New York, New York
October 19, 2021

Respectfully submitted,
BELDOCK LEVINE & HOFFMAN, LLP
Attorneys for Plaintiff

By: _____

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ATTORNEY'S VERIFICATION

I, David B. Rankin, an attorney duly admitted to practice before the Courts of the State of New York, affirm the following to be true under the penalties of perjury:

1. I am a partner at Beldock Levine & Hoffman LLP, attorneys of record for the Plaintiff.

2. I have read the annexed Complaint and know the contents thereof, and the same are true to my knowledge, except those matters therein which are alleged upon information and belief, and as to those matters, I believe them to be true. My beliefs, as to those matters therein not stated upon knowledge, are based upon facts, records, other pertinent information contained in my files.

3. This verification is made by me because Plaintiff does not reside in the County where I maintain my offices.

Dated: October 19, 2021
New York, New York

Respectfully submitted,
BELDOCK LEVINE & HOFFMAN, LLP
Attorneys for Plaintiff

By: _____


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